

NY.4 Where to File Directory

How to identify your permit office on the ladder, who approves the septic system and the well, the two overlays that reach one house, and the county license laws that do — and do not — reach a new home.

Before you use this document

This is a process reference, not legal advice. New York adopts one Uniform Code for every parcel in the state outside New York City and then lets your permit office be one of three governments: your town, village or city; your county; or the Department of State. The code itself never lapses, so the question that dominates most states in this series — will anyone inspect this house? — has a statutory answer here. What does vary: the fee, the local law's exemption list, the electrical inspection agency your office has approved, and the frost, snow and wind numbers it has written into Table R301.2. Confirm every item with the office that will actually handle your parcel before you rely on it. Every web address here was checked in September 2026. No phone numbers appear anywhere in this kit.

NO LIST EXISTS — HERE IS THE ONE QUESTION THAT REPLACES IT

Most states leave you ringing round to find out whether anybody permits your parcel. New York settles *whether* — somebody always does — and leaves you to find out *who*. The Department of State enforces the code “in the place of only a limited number of local governments,” and publishes no list of them; counties run enforcement for many towns by agreement, and publish no list either. The statute fixes the order of the question, so ask it in that order.

The ladder, in the order Executive Law § 381(2) fixes it

	Rung	Who to ask, and what
1	Village, then town, then city	Inside an incorporated village the village is your local government; a town is the local government only “outside the area of any incorporated village” (§ 372(11)). Ask the clerk: does the municipality run a code enforcement program under 19 NYCRR Part 1203, and who is the code enforcement officer?
2	The county	If the local government enacted a local law declining to enforce, or contracted the job to the county, the county's code office issues the permit. Ask the same clerk which county office; then confirm with that office directly.
3	The Department of State	If neither local government nor county enforces, DOS does, under Part 1202, through the Division of Building Standards and Codes' regional office for your county. The regional offices are listed at dos.ny.gov/building-standards-and-codes .

Get the answer in writing and date it. If the clerk's answer is “we use a company for that,” ask whether the company acts for the municipality under a contract — in which case you are on rung 1 and the permit still

issues from the town — or whether the town has declined enforcement altogether. The two sound alike on the phone and are different offices, different fee schedules and different local laws.

IF THE DEPARTMENT OF STATE IS YOUR PERMIT OFFICE

19 NYCRR Part 1202 is the procedure “in the circumstances in which the Secretary of State, through the Department of State (the department), will administer and enforce the Uniform Code and Energy Code in the place and stead of a local government or county” (§ 1202.1(a)). Four things change; a fifth — the eight permit exemptions apply by rule rather than by local choice (§ 1202.3(b)) — is in NY.5.

Part 1202 — what is different when DOS is the office

Change	The rule	Authority
The permit comes from Albany	“No person shall commence any work for which a building permit is required without first having obtained a building permit from the department. ”	19 NYCRR § 1202.3(a)
Two signatures	The application “shall be signed by the owner of the building or structure and the owner of the real property , if different.”	19 NYCRR § 1202.3(c)
You supply the design criteria	“The owner shall be responsible for providing the department with the climatic and geographic design criteria” — snow, wind, seismic, frost, termite, winter design temperature, ice barrier, air freezing index, mean annual temperature — “as established by the city, town, or village.” If the town never set them, a licensed architect or engineer establishes them.	19 NYCRR § 1202.12(a), (b)
Third-party fees are yours	DOS may contract inspections to a third party, and “the owner shall pay the associated fee prescribed by this Part, including but not limited to the fee associated with the third-party services.” The displaced town “shall not charge or collect fees.”	19 NYCRR § 1202.1(c); Exec. Law § 381(5)(a)

SEPTIC AND WELLS — THE COUNTY HEALTH DEPARTMENT

The code official enforces both — [NY] P2602.1.2 pulls the Health Department's Appendix 75-A into the Uniform Code for septic, and [NY] P2602.1.1 pulls Appendix 5-B in for wells — but the **approver** is the local health department: the county health department, or in the counties without a full-service one, the State Health Department's district office. DOH Fact Sheet #6, written for code officials: “Approvals for deviations (e.g., ‘specific waivers’) from the standards can only be granted by the local health department (LHD i.e., county health department or NYS District Office) having jurisdiction.”

Who approves what, on the health side

	Where to go
Which office	DOH publishes the county environmental health programs at health.ny.gov/environmental/water/drinking/ctyadd1.htm and its district offices at .../distphn.htm . Find your county on the first page; if it is not there, use the second.
Septic	Plans “shall be prepared directly by or under the supervision of a design professional” (10 NYCRR § 75.5(b)) to Appendix 75-A, and go to the health department for approval. An alternative system needs prior review and approval, a design professional supervising construction, and a post-construction certification (§ 75.5(c)). NY.2 has the distances and sizes.
Well	Drilled only by a DEC-registered driller ([NY] P2602.1.1). Check registration at appfactory.dec.ny.gov/WaterWell/Contractor_Search . A local well-driller licensing law is not preempted if it is “at least as comprehensive” (ECL § 15-1525(6)), so ask the county whether it has one.
Long Island	A DEC well permit under ECL § 15-1527 is needed in Nassau or Suffolk only where pumping capacity exceeds 45 gallons a minute — an ordinary house well is below it. The Nassau and Suffolk county sanitary codes govern house wells and septic instead; they were not read for this kit . Go to the county health department first.
Inside the NYC watershed	New York City's Department of Environmental Protection must also approve — see the next section.

TWO OVERLAYS THAT REACH ONE HOUSE — CHECK THE MAP FIRST

Both are gated on geography and neither is part of the Uniform Code. If your parcel is inside either, it adds an approval and changes the septic setbacks. If it is not, skip this section.

The Adirondack Park — Executive Law Article 27

Shoreline setbacks apply everywhere in the Park, whether or not the Agency permits your project. Minimum setback of a principal building from the mean high-water mark: **50 ft** in hamlet and moderate-intensity areas, **75 ft** in low-intensity and rural-use areas, **100 ft** in resource-management areas (§ 806(1)(a)(2)). “The minimum setback of any on-site sewage drainage field or seepage pit shall be **one hundred feet** from the mean high-water mark in all land use areas” (§ 806(1)(b)). Lot-width and tree-cutting rules sit alongside.

When you need an Agency permit. A single-family dwelling in a **Resource Management** area is a class B regional project (§ 810(2)(d)(1)); so is one within one-eighth mile of wilderness, primitive or canoe forest preserve, or within 150 ft (Rural Use) or 300 ft (Resource Management) of a state or federal highway (§ 810(2)(c)(17), (d)(9)). A class B project in a land use area without an Agency-approved local program needs an Agency permit before undertaking (§ 809(2)(a)). A single-family dwelling is a “minor project” — deemed complete on receipt, decided within **45 days** (§ 809(1)). Start at apa.ny.gov/permitting/laws.html.

The New York City watershed — 10 NYCRR Part 128

In the watershed towns of Delaware, Greene, Schoharie, Sullivan and Ulster counties west of the Hudson, and Putnam, Westchester and Dutchess east of it, “the design, treatment, construction, maintenance and operation of new subsurface sewage treatment systems, and the plans therefor, require the review and approval of the Department” — New York City's Department of Environmental Protection (§ 128-3.8(a)(1)). No part of a new absorption field may be “within the limiting distance of **100 feet** of a watercourse or wetland or **300 feet** of a reservoir, reservoir stem or controlled lake” (§ 128-3.8(a)(5)).

The parcel test is DEP's watershed map, reached from nyc.gov/site/dep/environment/regulations.page. Being in one of those counties does not put you in the watershed; being on the map does.

COUNTY HOME-IMPROVEMENT LICENSE LAWS — WHICH REACH A NEW HOUSE

No state license exists, but five downstate counties license home-improvement contractors, and a builder or trade you hire may need one. The county laws were read; here is what each says about a new house. **None of the five reaches the owner working on their own house** — Putnam says so expressly, and the others define the licensee as a person conducting a home-improvement *business*.

Five county laws, and what each says about a new house

County	What the law says	Instrument
Suffolk	“Home improvement contracting” “shall not include the construction of a new home or work done by a contractor in compliance with a guaranty of completion on new residential property.” Electrical and plumbing are licensed separately under § 563-126.	Suffolk County Code § 563-16
Nassau	“‘Home Improvement’ shall not include (a) the construction of a new home building or work done by a contractor in compliance with a guarantee of completion of a new building project.”	Nassau Admin. Code § 21-11.1(3)

Five county laws, and what each says about a new house

County	What the law says	Instrument
Putnam	The chapter does not apply to “the sale or construction of a new home other than a custom home, ” nor to “ work performed upon a residence by the owner, ” nor to plumbing (Chapter 190) or electrical (Chapter 145), which the county licenses separately. So a builder erecting a custom home on your lot does need the Putnam license.	Putnam County Code § 135-3(C)
Westchester	“Home improvement” means “repair, replacement, remodeling, installation, construction, alteration, conversion, modernization made to, in or upon a private residence,” and no person may engage in the business unless licensed. There is no express new-home exclusion. Confirm with the county's Consumer Protection department whether a contractor building a new house on an owner's lot must hold the license.	Laws of Westchester County § 863.312, .313
Rockland	Rockland licenses home-improvement contractors under Chapter 286 of the county code. The chapter text could not be retrieved for this kit and nothing is asserted about its new-home treatment. Obtain the current chapter from the county before hiring.	Rockland County Code Ch. 286 — not verified

Read from the counties' own hosted texts in September 2026: Suffolk's Consumer Affairs PDF of § 563, Nassau's local-law text, Putnam's Chapter 135 PDF, and Westchester's license application, which reproduces § 863.312. A contractor building your whole house is separately bound by General Business Law Article 36-A statewide — NY.2.

THE OFFICES THAT EXIST WHATEVER YOUR RUNG

The real risk is not missing an office — it is doing them in the wrong order, because three of them constrain what goes on the application and two constrain where the house can physically sit.

The sequence, whatever your rung

	Step	Which office, and why the order
1	Your rung	The clerk, in the statutory order above. Before anything else.
2	Tax map number	From the assessor. The application must carry “the tax map number and the street address” (§ 1203.3(a)(2)(ii)), and so must the certificate of occupancy.
3	Boundary survey	A licensed surveyor. The site plan must be “drawn in accordance with an accurate boundary survey” (§ 1203.3(a)(3)(viii)). Order it early; the septic design and the zoning setbacks are drawn on it.
4	County health department	Septic design approval and the well. Constrains the house position — do it before you fix the footprint.

The sequence, whatever your rung

	Step	Which office, and why the order
5	APA or NYC DEP	Only if the map puts you inside the Park or the watershed. Both change the septic setbacks.
6	Zoning	Local, always — setbacks, height, lot coverage are matters “as to which the uniform fire prevention and building code does not provide” (Exec. Law § 379(3)). Ask whether zoning approval must precede the building permit.
7	Floodplain administrator	Pull the FIRM at msc.fema.gov . In New York, flood-resistant construction applies in shaded X and B zones as well as A and V ([NY] R306.1).
8	Workers' Compensation Board	Form CE-200 as a homeowner at businesssexpress.ny.gov , or carrier forms C-105.2 and DB-120.1. Job-specific. NY.1.
9	Electrical inspection agency	From your office's approved list — nobody else's. Named on the statement of special inspections. Then the driveway permit from whichever road authority owns the road you touch, and 811 before any excavation.

STATE-LEVEL ADDRESSES

All confirmed to resolve in September 2026. Two of them sit behind a browser check that refuses automated readers; a person with a browser gets through.

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What you need	Where
Code editions and the all-electric status line	dos.ny.gov/notice-adoption
DOS regional offices; the Division's home	dos.ny.gov/building-standards-and-codes
Model local law most towns copied	dos.ny.gov/model-local-laws
Appeals and variances (Part 1205)	dos.ny.gov/code/variances
Complaint about a code official	dos.ny.gov/code/complaints
Form CE-200	businesssexpress.ny.gov — search “CE-200”; overview at wcb.ny.gov/content/ebiz/wc_db_exemptions/requestExemptionOverview.jsp

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What you need	Where
The 2025 codes, free	codes.iccsafe.org/content/NYSRC2025P1 (residential); codes.iccsafe.org/content/NYSECC2025P1 (energy)
County health departments	health.ny.gov/environmental/water/drinking/ctyadd1.htm ; district offices at .../distphn.htm
Appendix 75-A and 5-B	health.ny.gov/regulations/nycrr/title_10/part_75/appendix_75-a.htm ; .../part_5/appendix_5b.htm
DEC registered well drillers	appfactory.dec.ny.gov/WaterWell/Contractor_Search
Adirondack Park Agency	apa.ny.gov/permitting/laws.html
NYC watershed map and rules	nyc.gov/site/dep/environment/regulations.page
The all-electric docket	courtlistener.com/docket/71197226/mulhern-gas-co-inc-v-mosley/
Statutes	nysenate.gov/legislation/laws/EXC/A18 — Article 18; swap the code and section for any law cited here

One warning when you look something up. The official NYCRR on Westlaw (govt.westlaw.com/nycrr) was still showing the **2020** Residential Code for Part 1220 nine months after the 2025 rule took effect. For Parts 1219–1229 and 1240, read the Department of State's own rule-text PDFs, linked from the Notice of Adoption page.

YOUR DIRECTORY — FILL THIS IN BEFORE YOU NEED IT**Every office that touches this build, confirmed and dated**

	Item	Date	Notes
☐	Village / town / city, and whether it runs a Part 1203 program: Municipality _____ Runs program? _____		
☐	My rung (1 local, 2 county, 3 DOS) and the office that issues the permit: Rung _____ Office _____		
☐	Code enforcement officer by name, and the date I confirmed it: Officer _____ Date _____		

Every office that touches this build, confirmed and dated

	Item	Date	Notes
☐	County health department or DOH district office for septic and well; tax map number from the assessor: Office _____ Tax map no. _____		
☐	Inside the Adirondack Park? Inside the NYC watershed? (map checked, date): Park _____ Watershed _____ Date _____		
☐	Zoning office, and whether zoning approval precedes the building permit: Office _____ Precedes? _____		
☐	Floodplain administrator; FIRM zone (including shaded X): Office _____ Zone _____		
☐	County home-improvement license law, if any, and whether it reaches my builder: Law _____ Reaches builder? _____		
☐	Electric utility, and what it needs before setting a meter (usually the agency's electrical certificate); road authority for the driveway: Utility _____ Road authority _____		
☐	I called 811 before any excavation.		

Everything cited here is free to read, in three places. Statutes are at nysenate.gov/legislation/laws/EXC/381 — swap **EXC** for **GMU, WKC, EDN, GBS, LIE** or **LAB** and the number for the section. The rules (19 NYCRR Parts 1202, 1203, 1205, 1219–1229, 1240) are the Department of State's own rule-text PDFs at dos.ny.gov. The 2025 code books are free at codes.iccsafe.org/content/NYSRC2025P1 (residential) and [NYSECC2025P1](https://codes.iccsafe.org/content/NYSECC2025P1) (energy). **One warning:** the code is the regulation plus the book, and Westlaw's NYCRR still showed the 2020 edition for Parts 1219–1229 nine months after the 2025 rule took effect — read the DOS PDFs, not Westlaw. Read September 2026.